



DECISION

Complaint No. : POS/3073/2024/SGR-116

Name and address of the complainant : Mst. Asia, Wd/o. Ali Khan Laghari,
R/o. village Ghulam Laghari, P.O. Baqar Nizamani
via Shahdadpur, District Sanghar.

Name of the Agency Complained against : Revenue Department.

Name & Designation of Investigating Officer : Ghulam Shabir Memon,
Regional Director, Sanghar

Vetted by : Syed HashimRaza Zaidi
Advisor-S

Subject : **INACTION ON THE APPLICATION MADE FOR RESTORATION OF FOTI KHATA BADAL OF LAND LEFT BY DECEASED HUSBAND OF THE COMPLAINANT WHICH HAS BEEN ALLEGEDLY CANCELLED BY THE ASSTT. COMMISSIONER.**

THE COMPLAINT:

Mst. Asia filed a complaint on 27-06-2024, against the Revenue Department regarding its inaction on her application for restoration of Foti Khata Badal of the land left by her deceased husband, which was allegedly cancelled by the Assistant Commissioner. The complainant repeatedly approached the concerned authorities for redressal of her grievance, but to no avail. Being aggrieved, she solicited the intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under *Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date)*, after receiving mandatory Affidavit on Form "A" and other relevant documents.
3. This office issued notice to the Assistant Commissioner, Taluka Shahdadpur, vide letter dated 10/07/2025, followed by four reminders. Finally, on 05/11/2024, the Assistant Commissioner, Shahdadpur and the complainant appeared for hearing, wherein agency was directed to submit a detailed report. The Mukhtiarkar Shahdadpur submitted his report dated 18/11/2024, wherein he stated that after making entries in the record of rights, the legal heirs raised objections. The deceased's wife objected that the deceased Ali Khan belonged to the Shia sect, hence, the property be devolved as per Shia law among the legal heirs. He further reported that after receiving such information, the Foti Khata of the deceased Ali Khan was changed among the legal heirs as per fatwa, vide entry No. 909, dated 2/08/2024, Deh Jama. Thereafter, in the hearing dated 15/01/2025, it was decided to forward the matter to the Deputy Commissioner, Sanghar, as an appeal case.

4. After further correspondence, the Additional Deputy Commissioner, Sanghar, submitted the order of the Revenue Appeal of Mst. Asia w/o Ali Khan. A copy of the same was handed over to the complainant for her rejoinder. She submitted her rejoinder dated 18/11/2025, wherein she requested to close her case from this office, as she intends to approach the Civil Court against the revenue appeal decided by the DC Sanghar.

FINDINGS:

5. On the intervention of this office, the order of Revenue Appeal was submitted and handed over to the complainant. She has withdrawn her complaint from this office and intends to institute a suit before the competent Civil Court of law.

DECISION:

6. In view of the above, in exercise of powers vested in me under Section 11 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up-to-date), the case is disposed of as withdrawn.

Given under my hand and seal of this office.

Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz: PAS

Ombudsman, Sindh,

Karachi dated: 26th March, 2026

